

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
7/09/2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

Zoom telephone dial-in: +1 (669)-254-5252

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
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2:00 PM

LINE: 1

20-CIV-04800

MALAK ALSHAQRONI, ET AL VS. EL CAMINO INN, ET AL

MALAK ALSHAQRONI
EL CAMINO INN

IIAN N. ROSEN JANFAZA
GREGORY R. DE LA PENA

PLAINTIFFS MALAK ALSHAQRONI AND ZEIAD ENGAB'S MOTION TO COMPEL DEPOSITION OF PERSON MOST QUALIFIED OF DEFENDANT, BALBOA HOTEL LLC dba EL CAMINO INN; REQUEST FOR MONETARY SANCTIONS AGAINST DEFENDANT AND COUNSEL OF RECORD, JOINTLY AND SEVERALLY

TENTATIVE RULING:

Plaintiffs' motion to compel the deposition of Defendant Balboa Hotel LLC dba El Camino Inn's person most qualified ("PMK") is **GRANTED**. Plaintiffs' request for monetary sanctions is **GRANTED**.

Any party may obtain discovery "by taking in California the oral deposition of any person, including any party to the action." (Code Civ. Proc., § 2025.010.) Service of a deposition notice is effective to require a party deponent, or an officer, director, managing agent, or employee of a party, to attend, testify, and produce documents, electronically stored information, or tangible things for inspection and copying. (Id., § 2025.280, subd. (a).) If, after service of a deposition notice, a party-affiliated deponent fails to appear, proceed, or produce documents without having served a valid objection under section 2025.410, the party who gave the notice may move to compel attendance, testimony, and production. (Id., § 2025.450, subd. (a).) The motion must be accompanied by a meet-and-confer declaration or, when the deponent failed to attend, "by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Id., subd. (b)(2); *Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th 1109, 1124.)

On November 26, 2025, Plaintiffs served Defendants by email with a Notice of PMK Deposition set for December 10, 2025. (Toma Decl., ¶ 1, Ex. A.) Defense counsel's office replied, "Thank you, Ilan," two days later, on November 28, 2025. (Id., ¶ 3, Ex. B.) That same day, Plaintiffs served an Amended Notice of PMK Deposition moving the scheduled date one day later, to December 11, 2025. (Id., ¶ 4, Ex. C.)

On December 9, 2025, Plaintiffs emailed Defendants to confirm that the PMK deposition would go forward as noticed on December 11, 2025. (Id., ¶ 6, Ex. E.) Defense counsel's office responded that it had December 10 calendared for the deposition and attached a copy of the deposition notice that had been marked with the note, "LCD to object by email: 12/4/25." (Id., ¶ 7, Ex. E.) Plaintiffs responded that the amended notice had been sent to the same email addresses as the initial notice. (Id., ¶ 8, Ex. E.)

Defense counsel contacted Plaintiffs' counsel on December 9 and 10, 2025, stating on both occasions that service was defective and that Plaintiffs' counsel had not consulted on mutually agreeable dates before serving the notice. Defense counsel stated that, for those reasons, Defendants would not produce a witness for deposition. (Id., ¶¶ 9,

12, Exs. F, G.) On both occasions, Defendants' counsel did not provide any alternative dates for the deposition. (Ibid.)

Defendants did not oppose this motion. The Court is not persuaded by the reasons Defendants gave before the motion was filed. Although consulting with opposing counsel regarding deposition availability before serving a deposition notice is a common courtesy, nothing in Code of Civil Procedure section 2025.230 requires the noticing party to confer about the deposition date before serving notice.

A party served with a deposition notice waives any error or irregularity in the notice unless that party promptly serves a written objection specifying the error or irregularity at least three calendar days before the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410, subd. (a).) Defendants did not serve a timely written objection, move to stay and quash the notice, or seek an ex parte order extending time. (See id., subd. (c).)

Defendants apparently told Plaintiffs that they accept service only at calendaring@dlphlaw.com, which was not included among the email addresses used by Plaintiffs. (Toma Decl., Ex. F.) However, defense counsel's office acknowledged service of Plaintiffs' initial notice by replying, "Thank you, Ilan." (Id., Ex. B.) Within two hours of that acknowledgment, Plaintiffs sent an amended notice moving the deposition date one day later. (Id., Ex. C.) When confusion regarding the date arose, Defendants acknowledged that the initial date, December 10, 2025, was on their calendar and sent Plaintiffs a copy of the deposition notice on which they had added the note, "LCD to object by email: 12/4." (Id., Ex. E.)

Based on those facts, the Court finds that Defendants accepted service at the email addresses to which Plaintiffs served the notices and had ample time to object, meet and confer, or seek relief from the Court if the parties could not agree to a different date. Defendants failed to do so and had no lawful basis to refuse to appear and produce a PMK witness at the deposition.

If a motion to compel under Code of Civil Procedure section 2025.450, subdivision (a), is granted, the Court must impose a monetary sanction in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the Court finds that the one subject to sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).) The Court may also impose monetary sanctions against an attorney advising misuse of the discovery process. (Id., § 2023.030, subd. (a).)

Plaintiffs request \$2,850 in attorney's fees for six hours of work on this motion at \$475 per hour, plus the \$60 filing fee, for a subtotal of \$2,910. Plaintiffs also request \$1,074.80 for the stenographer's cost for the deposition at which Defendants did not appear. (Toma Decl., ¶¶ 14-20, Exs. H, I.)

Plaintiffs' attorney's fees request includes two hours of estimated time for preparing a reply to any opposition and attending the hearing. Because Defendants did not file an opposition, the estimated fee for those two hours will not be incurred and is excluded.

Accordingly, Plaintiffs' motion to compel is **GRANTED**. After serving notice of the order on this motion, Plaintiffs may serve a new notice resetting the PMK deposition that had previously been scheduled for December 11, 2025.

Plaintiffs' request for sanctions is **GRANTED** in the amount of \$1,900 in attorney's fees (four hours at \$475 per hour) and \$1,134.80 in costs for the filing fee and stenographer's fee, for total sanctions of \$3,034.80 against the Law Offices of De la Pena and Holiday, LLP and Defendant Balboa Hotel LLC dba El Camino Inn, jointly and severally.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

CITY OF FOSTER CITY
ELIZABETH KARNAZES

BENJAMIN L. STOCK
PRO SE

DEFENDANT JOHN HARTFORD'S DEMURRER TO PETITIONER'S COMPLAINT

TENTATIVE RULING:

PARTIES TO APPEAR.

2:00 PM

LINE: 3

25-CIV-01788

JOHN P. MCATAMNEY, ET AL VS. JAMES E. MCGOVERN, INC.

JOHN P MCATAMNEY
JAMES E. MCGOVERN, INC.

ADAM M. KOSS
AUDREY S. TAM

DEFENDANT JAMES E. MCGOVERN, INC'S MOTION FOR SUMMARY JUDGMENT/ ADJUDICATION

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the correct address for the hearing. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, CA 94080. (See Cal. Rules of Court, rule 3.1110 [the notice “must specify” the location of the hearing].)

Through its Motion for Summary Judgment/Adjudication (the “Motion”), Defendant seeks summary judgment on the Complaint or, alternatively, summary adjudication of three issues defined in the Motion.

The Motion for Summary Judgment is **DENIED**.

The Motion for Summary Adjudication as to Issue No. 1 is **DENIED**.

The Motion for Summary Adjudication as to Issue No. 2 is **DENIED**.

The Motion for Summary Adjudication as to Issue No. 3 is **DENIED**.

Plaintiffs’ Objections to Evidence in Opposition are ruled upon as indicated *infra*.

Defendant’s Objections to Evidence in Reply are ruled upon as indicated *infra*.

BACKGROUND

The Complaint alleges that Plaintiffs, a construction firm and its sole shareholder, officer, and director, relied on Defendant, their insurance broker, which represented in writing that a new commercial general liability insurer, Mt. Hawley, offered “all of the same endorsements and coverages” as Plaintiffs’ then-current insurer, Colony, which Plaintiffs had previously procured through Defendant, but for more than \$2,000 less. (Complaint, ¶¶ 3-4, 10-12, 15; see also Reply to Plaintiffs’ Additional Material Facts in Opp., AMF No. 1.) After Plaintiffs were sued for alleged defects in a high-end home renovation project, they learned that the new policy contained a breach-of-contract exclusion that effectively rendered the policy worthless, and that Defendant refused to provide a declaration regarding the insurance or otherwise timely assist Plaintiffs. (Complaint, ¶¶ 14, 17-20; see also Reply to Plaintiffs’ Additional Material Facts in Opp., AMF No. 6.) Plaintiffs ultimately settled that lawsuit for \$200,000 and paid other professionals in that action more than \$100,000. (Complaint, ¶¶ 22-23.) Plaintiffs allege that Defendant’s failure to meet the standard of care by negligently recommending less coverage than their previous policy was a substantial factor in causing Plaintiffs to incur those expenses. (Id., ¶¶ 22-23.)

Through its Motion, Defendant seeks summary judgment on the Complaint in its entirety (Code Civ. Proc., § 437c, subd. (a)) or, alternatively, summary adjudication of three issues defined in the Motion. (Id., § 437c, subd. (f).) Issue No. 1 asserts that all three causes of action are meritless because Plaintiffs waived any right

they may have had to bring those claims against Defendant. Issue No. 2 asserts that Plaintiffs had no fiduciary relationship with Defendant, so the second cause of action fails. Issue No. 3 asserts that all of Plaintiffs' claims are time-barred.

LEGAL STANDARDS FOR SUMMARY JUDGMENT AND SUMMARY ADJUDICATION

A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).) Denial of summary adjudication is appropriate on the same grounds as denial of summary judgment.

The California Code of Civil Procedure provides that "[a] party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) A motion for summary judgment must be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc., § 437c, subd. (c).)

A defendant has met its burden of showing that a cause of action is meritless, if:

- the party has shown that one or more elements of the cause of action ... cannot be established, or
- that there is a complete defense to the cause of action.

(Code Civ. Proc., § 437c, subd. (p)(2) (bullet points added).) If the defendant meets this burden, then "the burden shifts to the plaintiff ... to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Ibid.) "Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party." (*Weiss v. People ex rel. Department of Transportation* (2020) 9 Cal.5th 840, 864 (*Weiss*) (citations omitted).)

Summary judgment "is drastic and should be used with caution in order that it may not become a substitute for existing methods in the determination of issues of fact." (*Eagle Oil & Refining Co. v. Prentice* (1942) 19 Cal.2d 553, 556.) Indeed, issues of fact are to be found, not determined:

By an unbroken line of decision in this state since the date of the original enactment of section 437c, the principle has become well established that issue finding rather than issue determination is the pivot upon which the summary judgment law turns.

(*Walsh v. Walsh* (1941) 18 Cal.2d 439, 441 (*Walsh*) (citations omitted).) Further:

The purpose of the summary judgment procedure is not to try the issues but merely to discover, through the medium of affidavits, whether there are issues to be tried and whether the parties possess evidence which demands the analysis of trial.

(*Melamed v. City of Long Beach* (1993) 15 Cal.App.4th 70, 76 (*Melamed*).) Specifically, California summary judgment law differs from federal law in that the former "continues to require a defendant moving for summary judgment to present evidence, and not simply point out that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855 (*Aguilar*).) Further, the Supreme Court of California has stated:

Language in certain decisions purportedly allowing a defendant moving for summary judgment simply to "point[]" out "an absence of evidence to support" an element of the plaintiff's cause

of action does not reflect summary judgment law as it has ever stood, and is accordingly disapproved.

(*Aguilar, supra*, 25 Cal.4th at p. 855 (citation omitted).)

The Court must consider all of the evidence and inferences reasonably drawn therefrom “in the light most favorable to” the party opposing the motion. (*Aguilar, supra*, 25 Cal.4th at p. 843.) A trial court is justified in granting summary judgment “only if the declarations filed in support of it, strictly construed, contain facts sufficient to entitle the [proponents] to judgment, and those of the [opponents to the summary judgment motion], liberally construed, show that there was no issue of fact to be tried.” (*Stationers Corp. v. Dun & Bradstreet, Inc.* (1965) 62 Cal.2d 412, 417.)

Ultimately, if the Court feels any uncertainty as to whether a grant of summary judgment is proper, “any doubts about the propriety of summary judgment must be resolved in favor of the opposing party.” (*Mateel Environmental Justice Foundation v. Edmund A. Gray Co.* (2003) 115 Cal.App.4th 8, 17 (*Mateel*) (citations omitted).)

LEGAL STANDARDS GOVERNING THIRD-PARTY ATTEMPTS TO OBTAIN SUMMARY JUDGMENT BASED ON A RELEASE AGREEMENT

The Court of Appeal explains that:

Release agreements are governed by the generally applicable law of contracts. “A third party should not be permitted to enforce covenants made not for his benefit, but rather for others. He is not a contracting party; his right to performance is predicated on the contracting parties’ intent to benefit him.” The circumstance that a literal contract interpretation would result in a benefit to the third party is not enough to entitle that party to demand enforcement. The contracting parties must have intended to confer a benefit on the third party.

It is not necessary for the third party to be specifically named in the contract, but such a party bears the burden of proving that the promise he seeks to enforce was actually made to him personally or to a class of which he is a member. In making that determination, the court must read the contract as a whole in light of the circumstances under which it was entered.

Thus, to obtain summary judgment on the ground that a general release has discharged him from liability, a third party to the release agreement must affirmatively show that the parties intended to release him. The burden of proof is on the third party, under both contract law and the summary judgment statute. Because the court must consider the circumstances of the contracting parties’ negotiations to determine whether a third party not named in the release was an intended beneficiary, it will seldom be sufficient for the third party simply to rely on a literal application of the release. “The fact that ... the contract, if carried out to its terms, would inure to the third party’s benefit[,] is insufficient to entitle him or her to demand enforcement.” “However broad may be the terms of a contract, it extends only to those things concerning which it appears that the parties intended to contract.” “Whether a third party is an intended beneficiary ... to the contract involves construction of the parties’ intent, gleaned from reading the contract as a whole in light of the circumstances under which it was entered.”

Here, [the defendant] offered little extrinsic evidence of the contracting parties’ intent, relying instead on a literal interpretation of the terms of the release agreement and the holdings in *General Motors* and *Lama*. Indeed, [the defendant] objected to the extrinsic evidence offered

by the opposing parties, contending the parol evidence rule precluded consideration of extrinsic evidence We are not persuaded.

Parol evidence is admissible to resolve an ambiguity, and ... even an apparently unambiguous general release is properly interpreted in light of the surrounding circumstances. Section 1856, which codifies the parol evidence rule, bars “evidence of any prior agreement or of a contemporaneous oral agreement” that contradicts a final written agreement. But the statute “does not exclude other evidence of the circumstances under which the agreement was made or to which it relates, as defined in Section 1860, or to ... otherwise interpret the terms of the agreement” Section 1860 provides: “For the proper construction of an instrument, the circumstances under which it was made, including the situation of the subject of the instrument, and of the parties to it, may also be shown, so that the Judge be placed in the position of those whose language he is to interpret.” (... *City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1998) 68 Cal.App.4th 445, 473 [80 Cal.Rptr.2d 329] [extrinsic evidence of objective circumstances is properly consulted to determine mutual intent of contracting parties].)

Our Supreme Court has held that “[i]n determining the meaning of a written contract allegedly made, in part, for the benefit of a third party, evidence of the [surrounding] circumstances and negotiations of the parties in making the contract is both relevant and admissible. And, ‘[i]n the absence of grounds for estoppel, the contracting parties should be allowed to testify as to their actual intention....’ No grounds for estoppel appear in this case. [The defendant] did not claim that he relied on the release to his detriment; he merely sought protection in a literal interpretation of its terms after he was sued by [the plaintiff].

(*Neverkovec v. Fredericks* (1999) 74 Cal.App.4th 337, 348-351 (*Neverkovec*) (multiple citations omitted); see also *Vahle v. Barwick* (2001) 93 Cal.App.4th 1323, 1329.) The *Neverkovec* Court further analyzed the defendant’s use of the parol evidence rule in detail, noting that there, as here, “excluding extrinsic evidence would beg the question of the writing’s purpose, since the very issue to be resolved is whether the parties actually intended to bar all future third party claims when they executed the release.” (*Neverkovec, supra*, 74 Cal.App.4th at p. 350, fn. 8.)

THE MOTION IS DENIED AS TO ISSUE NO. 1.

Plaintiffs settled the above-described lawsuit over alleged construction defects (the “Construction Lawsuit”) via the “Construction Settlement Agreement,” and the lawsuit brought by their insurer regarding the scope of coverage of their insurance policy (the “Coverage Lawsuit”) via the “Coverage Settlement Agreement.”

Defendant asserts that these two agreements (collectively, the “Settlement Agreements” (Catalanotti Decl., Exhs. 27 & 28)) preclude this action because the release language in each agreement is broad enough to release every claim and entity.

Plaintiffs counter that their intent in signing the Settlement Agreements was to resolve disputes with Mt. Hawley and Mr. Horowitz, not to extinguish a separate professional negligence claim against Defendant, who was not named. (McAtamney Decl., ¶ 6.) Plaintiffs further argue that Defendant has not met its burden to show that it is a third-party beneficiary of either Settlement Agreement. As discussed above, that burden requires more than showing that the parties were aware the contracts might benefit Defendant; Defendant must show that the contracting parties had a purpose of benefiting Defendant.

Plaintiffs further assert that even if the release language could be interpreted as Defendant urges, which Plaintiffs deny, that ambiguity would create a triable issue of fact as to the contracting parties' intent, which cannot be resolved on summary judgment:

When two equally plausible interpretations of the language of a contract may be made, as in our case, parol evidence is admissible to aid in interpreting the agreement, thereby presenting a question of fact which precludes summary judgment if the evidence is contradictory.

(*Walter E. Heller Western, Inc. v. Tecrim Corp.* (1987) 196 Cal.App.3d 149, 158 (citations omitted).)

In Reply, Defendant emphasizes that when Plaintiffs executed both Settlement Agreements, Plaintiffs were aware of the facts on which they base their current claims but did not carve those claims out of the release language. However, the Construction Settlement Agreement provides, "This Release of Claims is only by and between Plaintiff and Kilrea Defendants and their Related Persons and Entities as described and contemplated in this Agreement." (Catalanotti Decl., p. 251, in Exh. 27.) "Related Persons and Entities" is not defined in that document. These aspects of the release language raise an ambiguity to be resolved by the fact finder as to whether Plaintiffs' or Defendant's interpretation of Plaintiffs' intent in the Construction Settlement Agreement is correct.

Also, the release language of the Coverage Settlement Agreement includes a release by Plaintiffs and Mt. Hawley of "each other, and each other's past or present managers, officers, directors, shareholders, members, employees, agents, adjusters," (Id., p. 258, in Exh. 28 (emphasis added).) Thus, facially, Plaintiffs released Mt. Hawley's agents, not their own agents. Either this language does not reach Defendant, or, at a minimum, it raises an ambiguity as to the scope of the release language in the Coverage Settlement Agreement. Triable issues of material fact exist as to the parties' intent regarding the scope of the asserted release language in the Settlement Agreements.

Defendant also asserts that it could have been joined in the Coverage Lawsuit, in which Plaintiffs sought the same relief as they seek here: indemnification for the costs of defending and settling both lawsuits. (Code Civ. Proc., § 379, subd. (a).) Thus, Defendant is further released under the Coverage Settlement Agreement as a party that could have been joined in that lawsuit.

Plaintiffs argue that Defendant could not have been joined in the Coverage Litigation because their claims in that action differed from the claims in this action. Plaintiffs note that, contrary to Defendant's apparent understanding of the instant claims, Plaintiffs are not seeking indemnification for the Construction Lawsuit as though Defendant were an insurer. Instead, they seek damages flowing from Defendant's alleged negligence. Defendant's argument on this point fails.

Thus, the Complaint survives the Motion as to Issue No. 1.

THE MOTION FOR SUMMARY JUDGMENT IS DENIED.

Because at least the first cause of action survives summary adjudication, the Motion for Summary Judgment is **DENIED** as well.

THE MOTION IS DENIED AS TO ISSUE NO. 2.

Plaintiffs agree that the existence of a fiduciary duty is a question of law, but then focus on factual questions concerning breach. Plaintiffs raise triable issues of material fact as to breach, causation, and damages, but those points are beyond the scope of Issue No. 2.

It is undisputed that Defendant was still Plaintiffs' insurance broker when Plaintiffs asked Defendant for its declaration; Plaintiffs had relied on Defendant in purchasing the insurance that turned out to be inadequate (see Defendant's Reply to Plaintiffs' AMF, AMF No. 3), leaving Plaintiffs without coverage for the Construction Lawsuit; and Plaintiffs sought Defendant's declaration on that precise point.

Defendant asserts that insurance broker-client relationships generally are not fiduciary, even if they are sometimes referred to as such, citing *Hydro-Mill Co., Inc. v. Hayward, Tilton & Rolapp Ins. Associates, Inc.* (2004) 115 Cal.App.4th 1145 (*Hydro-Mill*). *Hydro-Mill* states that "it is unclear whether a fiduciary relationship exists between an insurance broker and an insured." (*Hydro-Mill, supra*, 115 Cal.App.4th at p. 1156.) The Court of Appeal later recited *Hydro-Mill's* uncertainty and its inference that if an insurer is not a fiduciary, then arguably neither is an insurance broker. (*Mark Tanner Construction, Inc. v. Hub International Insurance Services, Inc.* (2014) 224 Cal.App.4th 574, 585 (Tanner).) After discussing a line of cases refusing to expand a broker's duties, the Court of Appeal nonetheless held:

From these cases we conclude that, other than when handling an insured's money, a broker's duty—whether or not phrased as a fiduciary duty—is no greater than the duty to use reasonable care and diligence in procuring insurance. As one leading treatise has observed: "It is not clear in what respect the 'fiduciary duty' owed by an independent insurance agent [broker] differs from the duty of due (reasonable) care. As used in respect to an independent agent, 'fiduciary duty' may refer merely to avoidance of conflict of interest, self-dealing, excessive compensation, etc."

(*Tanner, supra*, 224 Cal.App.4th at p. 586 (citation omitted).) Thus, while it may remain unclear whether the insurance broker's duty should be characterized as a "fiduciary duty," Defendant owed Plaintiffs at least a duty to use reasonable care and diligence, and the authorities recognize that a broker's duties may include avoiding conflicts of interest and self-dealing. Thus, under the negligence analysis applicable to the first and third causes of action, the element of duty exists.

Under *Hydro-Mill* and *Tanner*, Defendant has not established as a matter of law that no fiduciary duty existed under the circumstances presented here. At a minimum, Defendant has not shown entitlement to summary adjudication of Issue No. 2. Any remaining doubt about the propriety of summary adjudication must be resolved in favor of the opposing party. (*Mateel, supra*, 115 Cal.App.4th at p. 17.)

Thus, the Court finds that Defendant has not carried its burden as to Issue No. 2, and the second cause of action survives the Motion.

THE MOTION IS DENIED AS TO ISSUE NO. 3.

The parties agree that a two-year statute of limitations applies. (Code Civ. Proc., § 339, subd. 1; see *Hydro-Mill, supra*, 115 Cal.App.4th at pp. 1158-1159.)

The parties agree that the statute of limitations begins to run when all elements of a cause of action are complete, including actual, appreciable harm. Plaintiffs further assert that because Mt. Hawley defended Plaintiffs until at least March 10, 2023, the first appreciable harm occurred on or after that date, when Mt. Hawley advised Plaintiffs that it would no longer fund their defense in the Construction Lawsuit and, shortly thereafter, filed the Coverage Lawsuit against Plaintiffs, forcing them to retain separate counsel and incur attorney's fees for the first time. (McAtamney Decl., ¶ 7 (portion as to which Objection is overruled).) Accordingly, because this action was filed on March 5, 2025, it is timely. In support, Plaintiffs cite AMF Nos. 4, 5, and 9, which Defendant disputes. (Reply to Plaintiffs' Additional Material Facts in Opp., AMF Nos. 4, 5, & 9.)

As to AMF Nos. 5 and 9, Defendant also improperly objects in the Reply separate statement that they are legal conclusions rather than facts, and refers the Court to its Objections. (Id., AMF Nos. 5 & 9.)

Defendant essentially asserts that Plaintiff McAtamney perjures himself in declaring, “Prior to March 10, 2023, neither I nor Kilrea paid any attorneys’ fees.” (McAtamney Decl., ¶ 4.) Defendant notes that Mt. Hawley’s reservation-of-rights letters were addressed to Plaintiff McAtamney care of attorney Janet Brayer. However, Plaintiffs’ Objections to those letters are sustained on hearsay grounds, *infra*. Defendant further asserts that “Plaintiffs’ verified discovery responses identify attorney’s fees for Janet Brayer as recoverable damages. (UMF No. 77.)” (Reply, 13:23-24.) However, there is no UMF No. 77.

Defendant further argues that Plaintiffs cannot manufacture a triable issue of material fact through the McAtamney Declaration, which Defendant contends is inconsistent with Plaintiffs’ discovery responses and the documentary record. While Defendant’s Exhibits 16-19 are inadmissible on hearsay grounds, the undisputed UMF Nos. 21-24 reference Exhibits 21-24 to the Catalanotti Declaration, which are described as showing emails including Ms. Brayer, who appears from those emails to have been Plaintiffs’ counsel. (See, e.g., Catalanotti Decl., p. 135, in Exh. 22.) It is possible that Plaintiffs had counsel without incurring fees, though Plaintiffs have not explained the mechanism for that. Thus, the Court has before it Plaintiff McAtamney’s declaration under penalty of perjury that Plaintiffs incurred no attorney’s fees before March 10, 2023 (McAtamney Decl., ¶ 4), and evidence tending to support Defendant’s assertion that Plaintiffs had counsel before that date (see, e.g., Catalanotti Decl., p. 135, in Exh. 22). The evidence therefore shows a triable issue of material fact on this point.

Defendant argues in Reply that a claim for professional negligence against an insurance agent accrues when the plaintiff discovers, or through reasonable diligence should have discovered, “the injury and its negligent cause,” citing *Hydro-Mill*. (Reply, 14:13-14.) However, *Hydro-Mill* details the claims process as to the insurance agent and then explicitly states that potential tolling applicable “in an action by an insured against an insurer” (*Hydro-Mill*, *supra*, 115 Cal.App.4th at p. 1162), which is not the case here, does not apply to the broker. In doing so, the Court of Appeal specifies that:

All of the elements of a cause of action against [the defendant broker]—wrongful conduct, causation, and harm—were satisfied no later than December 9, 1994, when Scottsdale offered a payment that excluded the losses on the leased locations and all extra expenses. [The defendant broker] had agreed to obtain coverage for those items but failed to do so.

(*Hydro-Mill*, *supra*, 115 Cal.App.4th at p. 1164 (italics retained) (underline added).) Thus, harm must have occurred for the cause of action to accrue.

Defendant’s argument that Plaintiffs’ inference concerning the weight the Court might have given Defendant’s declaration is speculative ignores the principle that, on summary adjudication, the Court draws reasonable inferences against the Motion. Plaintiffs’ inference is reasonable.

Thus, the Complaint survives the Motion as to Issue No. 3.

PLAINTIFFS’ OBJECTIONS IN OPPOSITION

Plaintiffs’ Objections are directed to six exhibits in the Declaration of Peter C. Catalanotti with Compendium of Evidence. The Court rules on them as follows:

Objs. Nos. 1-4: **SUSTAINED**.

Objs. Nos. 5-6: **OVERRULED**.

Plaintiffs also improperly placed objections in their Separate Statement in Opposition, Etc., in violation of the California Rules of Court. (See Cal. Rules of Court, rules 3.1352, 3.1354(b) [“All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion”], 3.1354(c) [“party submitting written objections to evidence must submit with the objections a proposed order”].) Accordingly, the Court declines to rule on those Objections. (*Hodjat v. State Farm Mutual Automobile Insurance Co.* (2012) 211 Cal.App.4th 1, 8 [affirming trial court’s refusal to rule on objections made in separate statements and to provide second chance to file objections].) To the extent those objections are duplicative of Plaintiffs’ properly raised Objections, they have been ruled upon nonetheless.

DEFENDANT’S OBJECTIONS IN REPLY

Defendant’s Objections are directed to the Declaration of John P. McAtamney. The Court rules on them as follows:

Objs. Nos. 1-2: **OVERRULED**.

Obj. No. 3: **SUSTAINED** as to, “damages suffered by me and Kilrea as a result of McGovern’s breaches, and”; otherwise, **OVERRULED**.

Defendant also improperly placed objections in its Reply to Plaintiffs’ Separate Statement in Opposition, Etc., and in its Reply to Plaintiffs’ Additional Material Facts, Etc., in violation of the California Rules of Court. (See Cal. Rules of Court, rules 3.1352, 3.1354(b) [“All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion”], 3.1354(c) [“party submitting written objections to evidence must submit with the objections a proposed order”].) Accordingly, the Court declines to rule on those Objections. (*Hodjat v. State Farm Mutual Automobile Insurance Co.* (2012) 211 Cal.App.4th 1, 8 [affirming trial court’s refusal to rule on objections made in separate statements and to provide second chance to file objections].) To the extent those objections are duplicative of Defendant’s properly raised Objections, they have been ruled upon nonetheless.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare for the Court’s signature a written order consistent with the Court’s ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 4

25-CIV-04433

EDMUND LEE VS. HENGDA CONSTRUCTION INC., A CALIFORNIA CORPORATION

**EDMUND LEE
HENGDA CONSTRUCTION INC., A CALIFORNIA CORPORATION**

**MOHAMMED KASHEF
JAMES HUAN LY**

PLAINTIFF EDMUND LEE'S MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Plaintiff Edmund Lee's December 29, 2025 pro per motion for leave to file a Second Amended Complaint is **DROPPED AS MOOT**.

Plaintiff's motion for leave to file a Third Amended Complaint is **GRANTED**.

The record reflects that, after the Court sustained Defendant's demurrer to the First Amended Complaint with leave to amend on March 11, 2026, Plaintiff filed a Second Amended Complaint. Plaintiff, now represented by counsel, seeks leave to file a Third Amended Complaint. The proposed amendment narrows the case by dropping several previously challenged causes of action, restructures the breach-of-contract claim, updates damages allegations, removes an individual defendant, and adds a statutory claim under Business and Professions Code section 7159.

The motion substantially complies with California Rules of Court, rule 3.1324. The supporting declaration identifies the effect of the proposed amendment, why it is necessary and proper, when the facts giving rise to the amended allegations were discovered or reviewed, and why the request was not made earlier. No trial date has been set, no discovery cutoff has been set, and Defendant has not shown cognizable prejudice from the proposed amendment.

Plaintiff shall file and serve the Third Amended Complaint, in the form attached as Exhibit A to the Declaration of Mohammed Kashef, within 10 days after service of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant Gate Group, Inc. shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 5

25-CIV-04466

MOHAMMAD M KANNA VS. VINDULA RAGHBIR, ET AL

MOHAMMAD M KANNA
VINDULA RAGHBIR

ANDREA DIAZ
STEPHEN E BAUMANN

DEFENDANT GATE GROUP, INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendant Gate Group, Inc.'s demurrer to Plaintiff Mohammad M. Kanna's First Amended Complaint is **OVERRULED IN PART** and **SUSTAINED IN PART WITH LEAVE TO AMEND**.

The demurrer is **OVERRULED** as to the Fourth Cause of Action for failure to engage in the interactive process and the Sixth Cause of Action for wrongful termination in violation of public policy. The demurrer is **SUSTAINED WITH LEAVE TO AMEND** as to the First Cause of Action for disability harassment, Second Cause of Action for disability discrimination, Third Cause of Action for failure to accommodate, and Fifth Cause of Action for failure to prevent harassment, discrimination, or retaliation.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

PRELIMINARY MATTERS

The moving notice identified the prior department and hearing location. The matter was later reassigned to Department 2. The opposition and reply identify the correct department and hearing time, and the parties appear to have notice of the current hearing. To the extent the earlier notice contained an incorrect department or location, the Court finds no prejudice requiring the demurrer to be dropped from calendar. (See Cal. Rules of Court, rule 3.1110(b)(1).)

The Court also finds that Defendant substantially complied with Code of Civil Procedure section 430.41. Defense counsel met and conferred with Plaintiff's counsel regarding the original complaint and proposed amended pleading and later sent a further letter addressing the First Amended Complaint. In any event, an insufficient meet-and-confer process is not a ground to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

BACKGROUND

This employment action arises from Plaintiff's former employment with Gate Group, Inc. Plaintiff alleges that, while working as an executive chef, he was struck in the head when a roll-up door in the kitchen area unexpectedly closed. Plaintiff alleges the incident caused a concussion, cervical-spine injuries, and post-traumatic stress disorder. (FAC, ¶¶ 19-21.)

Plaintiff alleges that Defendants' clinic placed him on work restrictions, but Defendants failed to honor the restrictions or participate in a good-faith interactive process, causing him to continue working his normal schedule for several months. Plaintiff's healthcare provider later placed him off work on or about October 12, 2023, and Plaintiff informed Defendants on October 19, 2023. Plaintiff alleges he continued to provide updates thereafter. (FAC, ¶¶ 23-34.)

Plaintiff further alleges that, in or around December 2024, he made a final request to extend his leave of absence through January 29, 2025. (FAC, ¶ 38.) Plaintiff alleges he never sought or required an indefinite leave and fully intended to return to work. (FAC, ¶¶ 39-40.) Defendants denied the request and terminated his employment effective January 8, 2025. (FAC, ¶¶ 43-44.)

Defendant demurs to all six causes of action in the FAC.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the challenged pleading. A demurrer may be sustained where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e); id., §§ 430.30, subd. (a), 430.50, subd. (a).)

For purposes of demurrer, the Court accepts as true all properly pleaded material facts, but not contentions, deductions, or conclusions of law. The Court considers the pleading as a whole and gives it a reasonable interpretation. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303-304.)

FIRST CAUSE OF ACTION: DISABILITY HARASSMENT

FEHA prohibits harassment of an employee because of physical disability, mental disability, medical condition, and other protected characteristics. (Gov. Code, § 12940, subd. (j)(1).) To plead FEHA harassment, Plaintiff must allege facts showing that he was subjected to unwelcome conduct because of a protected characteristic and that the conduct was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 627, citing *Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 279.)

The severity of alleged harassment is evaluated from the perspective of a reasonable person in the plaintiff's position and under the totality of the circumstances. (*Bailey, supra*, 16 Cal.5th at p. 629.) A single incident may be sufficient if it unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive work environment. (Gov. Code, § 12923, subd. (b).)

The FAC alleges that Defendants contacted Plaintiff excessively while he was on leave and pressured him to return to work or perform job duties, even though he was on leave and/or required additional leave as an accommodation. (FAC, ¶ 41.) Those allegations are too conclusory to state a harassment claim. The FAC does not allege the frequency of the communications, who made which communications, what was said, when the

communications occurred, how Plaintiff was pressured, or facts showing that the communications conveyed hostility toward Plaintiff because of his disability, medical condition, or leave status.

Personnel-management activity, standing alone, generally does not constitute harassment. (*Reno v. Baird* (1998) 18 Cal.4th 640, 645-647; *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 63-65.) However, personnel-management conduct may be considered in assessing harassment when it communicates a hostile message based on a protected characteristic. (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 709-710.) As pleaded, the FAC does not allege enough facts to show that Defendant's leave-related communications were severe or pervasive harassment, rather than return-to-work or leave-administration communications.

Accordingly, the demurrer to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SECOND CAUSE OF ACTION: DISABILITY DISCRIMINATION

FEHA makes it unlawful for an employer, because of a person's physical disability, mental disability, or medical condition, to discharge the person from employment or discriminate against the person in compensation or in the terms, conditions, or privileges of employment. (Gov. Code, § 12940, subd. (a).) The elements of a disability-discrimination claim are that the plaintiff suffered from a disability or was regarded as suffering from a disability, could perform the essential duties of the job with or without reasonable accommodation, and was subjected to an adverse employment action because of the disability or perceived disability. (*Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 310; *Green v. State of California* (2007) 42 Cal.4th 254, 262.)

The FAC sufficiently alleges that Plaintiff suffered from a disability or was perceived as disabled and that he was terminated because of his actual or perceived disability. (FAC, ¶¶ 19, 43, 51, 53, 60.) However, the FAC does not allege sufficient facts showing that Plaintiff could perform the essential duties of his executive-chef position, with or without reasonable accommodation, at the relevant time.

The FAC alleges that Plaintiff continued working his normal schedule for a period after the injury, was later placed off work in October 2023, requested an extension of leave through January 29, 2025, was terminated effective January 8, 2025, underwent spinal fusion surgery on or about June 3, 2025, and remains able to work with or without accommodation. (FAC, ¶¶ 27, 29, 38, 43, 47.) Those allegations do not explain whether, when, or how Plaintiff could perform the essential duties of the job between the October 2023 work removal and the January 2025 termination, with or without a reasonable accommodation. The allegation that Plaintiff remains able to work after June 2025 does not fill that pleading gap.

Accordingly, the demurrer to the Second Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

THIRD CAUSE OF ACTION: FAILURE TO ACCOMMODATE

FEHA requires an employer to make reasonable accommodation for the known physical or mental disability of an employee, unless doing so would produce undue hardship. (Gov. Code, § 12940, subd. (m)(1).) A finite leave of absence may be a reasonable accommodation if, after the leave, the employee can return to work with or without further reasonable accommodation and the leave does not impose an undue hardship. (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 41-42.) FEHA generally does not require an employer to provide an indefinite leave of absence. (*Atkins v. City of Los Angeles* (2017) 8 Cal.App.5th 696, 721-722.)

Defendant argues that Plaintiff requested an indefinite leave. The FAC does not so allege. It alleges that Plaintiff made a final request to extend his leave through January 29, 2025, and that Plaintiff never sought or required indefinite leave. (FAC, ¶¶ 38-39.) On demurrer, Plaintiff need not rebut Defendant's factual characterization with evidence. (*Fisher, supra*, 214 Cal.App.3d at p. 604.)

The claim is nevertheless insufficiently pleaded for the same reason the disability-discrimination claim is insufficiently pleaded. The FAC does not allege enough facts showing that, after the requested finite leave, Plaintiff would have been able to return to work and perform the essential duties of the job with or without further reasonable accommodation. The FAC's conclusory allegation that Plaintiff intended to return to work is not enough, without supporting facts connecting the requested leave period or another accommodation to his ability to perform the essential job duties.

Accordingly, the demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FOURTH CAUSE OF ACTION: FAILURE TO ENGAGE IN THE INTERACTIVE PROCESS

FEHA requires an employer to engage in a timely, good-faith interactive process with an employee to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee with a known physical or mental disability or known medical condition. (Gov. Code, § 12940, subd. (n).) No magic words are required, and the obligation arises once the employer becomes aware of the need to consider an accommodation. (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1013.)

The FAC alleges that Plaintiff reported the work injury, went to Defendants' clinic, received restrictions, informed Defendants that he was placed off work, provided updates, and later requested an extension of his leave through January 29, 2025. (FAC, ¶¶ 20-22, 24-26, 33-34, 38.) These allegations sufficiently plead that Defendant knew of Plaintiff's disability and need for accommodation and that Plaintiff initiated or continued the interactive process.

The FAC further alleges that Defendant failed to explore or identify other potential accommodations that would allow Plaintiff to return to work and instead terminated his employment effective January 8, 2025. (FAC, ¶¶ 43-44.) Defendant argues that it participated in the interactive process over time. That argument may be developed factually later, but it does not defeat the claim on demurrer. The employer's duty to participate in good faith is continuing, particularly when the employee requests a different accommodation or the employer is aware that the initial accommodation is failing and further accommodation may be needed. (*Scotch, supra*, 173 Cal.App.4th at p. 1013.)

Accordingly, the demurrer to the Fourth Cause of Action is **OVERRULED**.

FIFTH CAUSE OF ACTION: FAILURE TO PREVENT HARASSMENT, DISCRIMINATION, OR RETALIATION

FEHA makes it unlawful for an employer to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring. (Gov. Code, § 12940, subd. (k).) A failure-to-prevent claim is derivative of an underlying claim of discrimination, harassment, or retaliation. (See *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 288-289.)

The FAC alleges that, once Defendants were aware of harassment and discrimination, they failed to take appropriate measures to prevent further harassment, discrimination, and retaliation. (FAC, ¶ 80.) However,

for the reasons stated above, the harassment and discrimination claims are insufficiently pleaded. The FAC does not separately plead a retaliation cause of action or facts supporting a distinct retaliation theory. The failure-to-prevent claim is therefore insufficiently pleaded as derivative of the insufficiently pleaded harassment and discrimination claims.

Accordingly, the demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SIXTH CAUSE OF ACTION: WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY

To state a claim for wrongful termination in violation of public policy, a plaintiff must allege that the employer terminated the plaintiff's employment in violation of a public policy affecting society at large, that is substantial, fundamental, and grounded in a statutory or constitutional provision. (*Holmes v. General Dynamics Corp.* (1993) 17 Cal.App.4th 1418, 1426; *Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 889-890.)

The FAC alleges that Plaintiff requested continued medical leave through January 29, 2025, participated in the accommodation process, did not request indefinite leave, and was terminated effective January 8, 2025 because of his actual or perceived disability and/or because Defendant failed to engage in the legally required interactive process. (FAC, ¶¶ 38-45.) FEHA embodies substantial and fundamental public policies against disability discrimination and in favor of reasonable accommodation and the interactive process. At the pleading stage, these allegations are sufficient to state a wrongful-termination claim based on FEHA-related public policies, even though other statutory FEHA claims require amendment to plead additional element-specific facts.

Accordingly, the demurrer to the Sixth Cause of Action is **OVERRULED**.

DISPOSITION

Defendant Gate Group, Inc.'s demurrer is **OVERRULED** as to the Fourth and Sixth Causes of Action and **SUSTAINED WITH LEAVE TO AMEND** as to the First, Second, Third, and Fifth Causes of Action.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant Gate Group, Inc. shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 6

25-CIV-04466

MOHAMMAD M KANNA VS. VINDULA RAGHBIR, ET AL

MOHAMMAD M KANNA
VINDULA RAGHBIR

ANDREA DIAZ
STEPHEN E BAUMANN

DEFENDANT DAVID POTTS'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

For the following reasons, Defendant David Potts's demurrer to the First Cause of Action for disability harassment in Plaintiff Mohammad M. Kanna's First Amended Complaint ("FAC") is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff may file and serve a Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

BACKGROUND

This action arises out of Plaintiff's former employment with Defendant Gate Group, Inc. Plaintiff alleges he sustained a work-related head injury on June 26, 2023, when a roll-up door unexpectedly closed and struck him. Plaintiff alleges he reported the incident to several individuals, including Defendant David Potts. (FAC, ¶ 21.)

Plaintiff further alleges he was diagnosed with a concussion, received work restrictions, later remained off work from October 2023 through July 2024, and eventually learned he had sustained cervical-spine injuries from the incident. In December 2024, Plaintiff requested an extension of his leave of absence. Defendants denied the request and terminated his employment on January 8, 2025.

The FAC asserts six causes of action against Gate Group. Only the First Cause of Action for disability harassment under the Fair Employment and Housing Act ("FEHA") is asserted against Potts. Plaintiff alleges that Potts, along with Defendants Vindula Raghbir, Hardev Guru, and Alice Warrick, harassed Plaintiff by contacting him excessively while he was on leave and pressuring him to return to work or perform job duties, even though he was on leave and/or required additional leave as an accommodation. (FAC, ¶ 41.)

PRELIMINARY MATTERS

The moving notice identified the prior department and hearing location. The matter was later reassigned to Department 2. The opposition and reply identify the correct department and hearing time, and the parties appear to have notice of the current hearing. To the extent the earlier notice contained an incorrect department or location, the Court finds no prejudice requiring the demurrer to be dropped from calendar. (See Cal. Rules of Court, rule 3.1110(b)(1).)

Potts has submitted evidence of compliance with Code of Civil Procedure section 430.41. Defense counsel declares that the parties met and conferred by telephone on August 15, 2025, and that, after Plaintiff filed the FAC on August 19, 2025, defense counsel sent a follow-up letter addressing the alleged pleading deficiencies. (Nushwat Decl., ¶¶ 7-10.) The parties did not resolve the issues raised by the demurrer.

LEGAL STANDARD

A demurrer tests the legal sufficiency of the challenged pleading. A demurrer may be sustained where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e); *id.*, §§ 430.30, subd. (a), 430.50, subd. (a).)

For purposes of demurrer, the Court accepts as true all properly pleaded material facts, but not contentions, deductions, or conclusions of law. The Court considers the pleading as a whole and gives it a reasonable interpretation. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303-304.)

FIRST CAUSE OF ACTION FOR DISABILITY HARASSMENT

A demurrer may be sustained where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

FEHA makes it an unlawful employment practice for an employer or other covered person to harass an employee because of, among other protected characteristics, physical disability, mental disability, or medical condition. (Gov. Code, § 12940, subd. (j)(1).) An employee is personally liable for harassment prohibited by section 12940, subdivision (j), that is perpetrated by that employee, regardless of whether the employer knew or should have known of the conduct and failed to take corrective action. (*Id.*, subd. (j)(3).)

To state a harassment claim under FEHA, Plaintiff must allege facts showing that he was subjected to unwelcome conduct because of his protected status and that the conduct was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 627, citing *Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 279.) The severity of alleged harassment is evaluated from the perspective of a reasonable person in the plaintiff's position and under the totality of the circumstances. (*Bailey, supra*, 16 Cal.5th at p. 629.)

Potts first argues he cannot be held personally liable because the FAC does not adequately allege that he supervised Plaintiff. That argument is not persuasive. The current text of Government Code section 12940, subdivision (j)(3), permits personal liability against an employee who personally perpetrates harassment prohibited by subdivision (j). Plaintiff therefore need not allege that Potts was his supervisor in order to state a harassment claim against Potts individually.

Personnel-management activity, standing alone, generally does not constitute harassment. (*Reno v. Baird* (1998) 18 Cal.4th 640, 645-647; *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 63-65.) However, personnel-management conduct may be considered in assessing harassment when it communicates a hostile

message based on a protected characteristic. (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 709-710.) As pleaded, the FAC does not allege enough facts to show that Defendant Pott's leave-related communications were severe or pervasive harassment, rather than return-to-work or leave-administration communications.

Here, Plaintiff alleges only that Potts and others contacted him excessively while he was on leave and pressured him to return to work or perform job duties. (FAC, ¶ 41.) The FAC does not allege when Potts contacted Plaintiff, how often Potts contacted him, what Potts said, what Potts did, how Potts pressured Plaintiff, whether Potts used any disability-based language, or facts showing that Potts's communications conveyed a hostile message because of Plaintiff's disability or medical condition. Without those facts, the alleged conduct is equally consistent with leave administration, return-to-work communications, or other personnel-management activity. As pleaded, the FAC does not allege facts showing conduct by Potts that was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment.

Accordingly, Potts's demurrer to the First Cause of Action for disability harassment is **SUSTAINED WITH LEAVE TO AMEND**.

DISPOSITION

Defendant David Potts's demurrer to the First Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**. Plaintiff shall file and serve any Second Amended Complaint within 10 days after service of notice of entry of the order. (Cal. Rules of Court, rule 3.1320(g).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant David Potts shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 7

25-CIV-08949

SARISHAMA MAHARAJ VS. HYUNDAI MOTOR AMERICA

SARISHAMA MAHARAJ
HYUNDAI MOTOR AMERICA

EMILY MAYERS
ALI AMERIPOUR

DEFENDANT HYUNDAI MOTOR AMERICA’S MOTION TO COMPEL BINDING ARBITRATION

TENTATIVE RULING:

For the following reasons, Defendant Hyundai Motor America’s Motion to Compel Binding Arbitration is **GRANTED**.

Defendant Hyundai Motor America moves to compel arbitration under the arbitration provision in the 2022 Owner’s Handbook & Warranty Information (the “Warranty”), not under the Retail Installment Sales Contract (“RISC”).

Code of Civil Procedure section 1281.2 requires the court to order arbitration if it determines that an agreement to arbitrate the controversy exists, unless the moving party has waived the right to compel arbitration, grounds exist for revocation of the agreement, or litigation with a third party creates a risk of conflicting rulings on common issues. (Code Civ. Proc., § 1281.2.) Arbitration is a matter of contract; a party may not be compelled to arbitrate a dispute the party did not agree to arbitrate. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236; see also *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.)

The party seeking arbitration bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn., supra*, 55 Cal.4th at p. 236; *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party satisfies its initial burden by producing a copy of the arbitration agreement or by stating its provisions verbatim. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166; Cal. Rules of Court, rule 3.1330.) If the opposing party does not dispute the existence or authenticity of the agreement, the moving party need not present additional evidence to authenticate the agreement. (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Kostandian v. American Honda Motor Co., Inc. (2026) 120 Cal.App.5th 872 is particularly instructive. There, the Court of Appeal held that the manufacturer met its initial burden to establish a warranty-booklet arbitration agreement where it produced the booklet containing the arbitration provision, recited the relevant terms in its moving papers, and the plaintiff did not dispute the existence of an arbitration agreement in the warranty booklet. (*Id.* at pp. 884-885; see also *Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.)

Here, the arbitration agreement under which Defendant seeks to compel arbitration is contained in the Warranty. (Ameripour Decl., ¶ 4, Exh. 2.) Defendant produced a copy of the Warranty and set forth the operative arbitration language under the heading “BINDING ARBITRATION FOR CALIFORNIA VEHICLES ONLY,” which provides:

If you purchased or leased your Hyundai vehicle in the State of California, you and we, Hyundai Motor America, each agree that any claim or disputes between us (including between you and any of our affiliated companies) related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty, including without limitation claims related to false or misleading advertising, unfair competition, breach of contract or warranty, the failure to conform a vehicle to warranty, failure to repurchase or replace your vehicle, or claims for a refund or partial refund of your vehicle's purchase price (excluding personal injury claims), but excluding claims brought under the Magnuson-Moss Warranty Act, shall be resolved by binding arbitration at either your or our election, even if the claim is initially filed in a court of law.

(Id.)

Plaintiff does not dispute the existence or authenticity of the arbitration agreement contained in the Warranty, does not argue that Plaintiff opted out of the Warranty arbitration provision, and does not identify any claim that falls outside the Warranty provision or within the Magnuson-Moss Warranty Act exclusion. Instead, Plaintiff's opposition focuses on the RISC between Plaintiff and non-party Capitol Hyundai. (Opp. at p. 1:4-6.) Because Defendant seeks to compel arbitration under its own Warranty provision, Plaintiff's arguments regarding equitable estoppel and third-party beneficiary status under the RISC do not defeat the Motion.

The Motion is therefore **GRANTED**. This action is **STAYED** pending completion of arbitration. (Code Civ. Proc., § 1281.4.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM

LINE: 8

25-CIV-09560

PAULA NIEVES VS. MARK GILLMAN, ET AL

PAULA NIEVES
MARK GILLMAN

LOUIS S. ABRONSON
ROWENA P. LIZIN

PETITIONER PAULA NIEVES' PETITION FOR ORDER RELIEVING PETITIONER FROM PROVISIONS OF GOVERNMENT CODE SECTION 945.4 OR OTHERWISE ACCEPTING HER GOVERNMENT CLAIM AS TIMELY

TENTATIVE RULING:

Plaintiff Paula Nieves's petition for relief under Government Code section 946.6 is **GRANTED**.

Defendant City of Redwood City's request for judicial notice is **GRANTED** as to the existence, filing, and legal effect of the court records and public records submitted, but not for the truth of any reasonably disputed factual matter asserted in those records.

Plaintiff alleges she was injured on January 23, 2025, near 1601-1607 Woodside Road in Redwood City. Because the claim concerns personal injury, Plaintiff was required to present a claim to the appropriate public entity within six months after accrual. (Gov. Code, § 911.2, subd. (a).) Plaintiff did not present a claim to the City of Redwood City within that six-month period.

Plaintiff did, however, timely present a claim to the City of San Mateo on or about June 27, 2025. On October 1, 2025, the City of San Mateo rejected the claim because the subject property was not located within that city. On October 7, 2025, Plaintiff submitted a claim and application for leave to present a late claim to the City of Redwood City. Redwood City denied the late-claim application on October 20, 2025.

The late-claim application was made within one year after accrual and within a reasonable time after Plaintiff learned that the claim had been presented to the wrong public entity. (Gov. Code, § 911.4, subd. (b).) The petition for court relief was also timely, assuming the docket confirms it was filed within six months after Redwood City denied the late-claim application. (Gov. Code, § 946.6, subd. (b).)

The Court finds that Plaintiff's failure to timely present the claim to Redwood City resulted from mistake, inadvertence, or excusable neglect. Plaintiff's case manager mistakenly submitted the claim to the City of San Mateo because he confused the San Mateo County forum with the proper public entity for claim presentation. The error is not ideal, particularly because Plaintiff's intake materials and the claim form identified the incident location as Redwood City. However, the record shows that Plaintiff's counsel timely attempted to present a claim within the original claim period, promptly corrected the error after receiving the City of San Mateo's rejection, and timely sought late-claim relief from Redwood City. Under the policy favoring trial on the merits and the standards stated in *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, the Court does not find the neglect clearly inexcusable.

Redwood City has not established that it would be prejudiced in defending the claim if relief is granted. Accordingly, Plaintiff is relieved from the requirements of Government Code section 945.4 as to her claim

against the City of Redwood City. The Court does not deem the original claim timely; rather, it grants relief under Government Code section 946.6 from the claim-presentation requirement.

This ruling does not adjudicate the merits of Plaintiff's claims, the City's liability, dangerous-condition issues, causation, damages, or any other defense. It only permits Plaintiff to proceed against Redwood City notwithstanding the late presentation of the government claim.

**UD LAW AND MOTION CALENDAR
THURSDAY, JULY 09, 2026**

2:00 PM

LINE: 1

26-UDL-00133

MERCY HOUSING CALIFORNIA VS. IMAD OUBELLA, ET AL

**MERCY HOUSING CALIFORNIA
IMAD OUBELLA**

**DANIEL M. BORNSTEIN
PRO SE**

PLAINTIFF MERCY HOUSING CALIFORNIA’S MOTION FOR SUMMARY JUDGMENT; REQUEST THAT THE COURT TAKE JUDICIAL NOTICE

TENTATIVE RULING:

PARTIES TO APPEAR.

Posted: 3:00 P.M.